

STATE OF OKLAHOMA

1st Session of the 60th Legislature (2025)

HOUSE BILL 1681

By: Roe

AS INTRODUCED

An Act relating to public health and safety; amending 63 O.S. 2021, Section 2-420, which relates to the Trafficking in Illegal Drugs Act; providing an exception to Global Positioning System (GPS) monitoring device requirement; and providing an effective date.

BE IT ENACTED BY THE PEOPLE OF THE STATE OF OKLAHOMA:

SECTION 1. AMENDATORY 63 O.S. 2021, Section 2-420, is amended to read as follows:

Section 2-420. A. ~~Any~~ Except as provided for in subsection C of this section, any person charged with aggravated trafficking pursuant to Section 2-415 of this title shall not be subject to pretrial release as specified in Section 1105.3 of Title 22 of the Oklahoma Statutes and shall not be released on bail without a Global Positioning System (GPS) monitoring device attached to the person and cost thereof paid by such person at his or her own expense until after the conclusion of the criminal case. The Department of Corrections shall monitor such GPS monitoring device and the person

1 until the conclusion of the case, and the person shall pay a
2 supervision fee as provided for other persons subject to supervision
3 by the Department. At the conclusion of the case, the court shall
4 order the removal of the GPS monitoring device if the person is
5 acquitted or is to be incarcerated or the case is dismissed.

6 B. The Department of Corrections shall maintain statistical
7 records on any aggravated trafficking offense, including a
8 calculation of the time period from arrest to disposition, and if
9 the person is convicted, the term of sentence, length of sentence
10 actually served in incarceration, amount of the fine imposed,
11 whether any enhancements or co-occurring offenses were involved,
12 whether the person is determined upon reception into the custody of
13 the Department to be an addicted person, and whether the person has
14 prior convictions by stating the prior offenses.

15 C. Any person charged and confined in a county jail for
16 aggravated trafficking who requires medical care and treatment in a
17 hospital facility and is released from jail on his or her own
18 recognizance shall not be subject to GPS monitoring, as required in
19 subsection A of this section, while receiving medical care and
20 treatment in the hospital. Upon discharge from the hospital, the
21 person shall be required to have a GPS monitoring device attached
22 within forty-eight (48) hours with the cost thereof paid by the
23 person at his or her own expense. The Department shall monitor the
24 GPS monitoring device as specified in subsection A of this section.

SECTION 2. This act shall become effective November 1, 2025.

60-1-10922 GRS 12/20/24